

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 06/10/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	Simpson – Probate; 30-2025-01512125	
2	Katz - Probate	Motion for Summary Judgment
3	Wesselman – Trust; 30-2023-01358829	Motion for Reconsideration Respondent Paul Wesselman’s Motion for Reconsideration (ROA 190) is DENIED. Respondent Paul Wessleman (Paul) moves for reconsideration of the court’s March 18, 2026 minute order (ROA 183) granting in part and denied in part Paul’s Motion to Compel the Frost Law Firm to Release Settlement Funds (Motion to Release Funds [ROA 129]). Paul’s motion is made pursuant to Code of Civil Procedure Section 1008(a), which reads in pertinent parts: (a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order <i>and based upon new or different facts, circumstances, or law</i>, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. . . . (e) This section specifies the court’s jurisdiction with regard to applications for reconsideration of its orders and renewals

of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. *No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section.*

(Emphasis added.)

The requirement of “new or different facts, circumstances or law” is jurisdictional. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500 [“a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon ‘new or different facts, circumstances, or law’”].) Further, a party seeking reconsideration pursuant to Section 1008 must explain why the allegedly new or different facts, circumstances or law were not previously presented. (*Evan Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833; *Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1200.)

Paul argues the new facts and circumstances supporting reconsideration are: (1) the \$16,000 in the trust account at the time he filed the Motion to Release has been depleted and there are no additional trust funds to finance his defense of this action; (2) the litigation is ongoing so Paul will have to expend his own funds; and (3) the beneficiaries’ rights are adequately protected because Paul is a fiduciary.

These facts and circumstances are neither new nor different. As an initial matter, Paul—as trustee—is and was subject to fiduciary obligations as a matter of law. Regarding the amount of trust funds and the monetary demands of the ongoing litigation, the Motion to Release Funds argued: “The Citibank Trust Account has approximately \$16,000. [Citation.] If the settlement funds from the Frost Law Firm are not deposited into the Trust Account, Paul will have to use his own money to defend against the petition and to pay for the Trust’s administration.” (Motion Release Funds at 9:22-24.) Because Paul does not offer any new facts or circumstances, the motion may not be considered under section 1008.

Even if the facts and circumstances underlying the motion for reconsideration were new, they would not support Paul’s request for different ruling on the Motion to Release Funds. Paul argues the court’s order denying him authorization to use the recently released funds for his defense exceeded the

	scope of the motion and was, therefore, “ultra petita” or “in excess of the petition.” The court notes that no published California case refers to either “ultra petita” or “in excess of the petition.” Indeed, in the entire body of state and federal case law, the court has only been able to identify six cases that refer to the doctrine of refer to “ultra petita”—an 1817 case from the Supreme Court of Louisiana, and unreported 2022 case from the United States District Court, District of Maryland, a unreported 2015 case from the United States District Court, Northern District of Alabama, an unreported 1942 case from El Tribunal Supremo De Puerto Rico, and unreported 2025 case issued by Tribunal de Apelaciones, and an unreported 2026 case issued by Tribunal de Apelaciones. Similarly, in the entire body of state and federal case law, this court can only find eight cases referring to “in excess of the petition.” Seven of those cases address judgments not orders. The eighth addresses a zoning variance. To the extent, Paul is making a due process argument, the court is entitled to consider the grounds stated in the notice of motion and grounds included in the supporting papers. (<i>Luxury Asset Lending, LLC v. Philadelphia Television Network, Inc.</i> (2020) 56 Cal.App.5th 894, 909 [“As a general rule, the trial court may consider only the grounds stated in the notice of motion. [Citations.] An omission in the notice may be overlooked if the supporting papers make clear the grounds for the relief sought”].) The second paragraph of the memorandum of Points and Authorities in support of the Motion to Release Funds reads, in full: “In an abundance of caution, the Frost Law Firm took the position that the settlement funds can be transferred only with the agreement of all five beneficiaries or a court order. Petitioner Amy Helleson did not agree because Paul would use the settlement funds to pay attorney fees to defend the petition and to pay a different law firm that is handling the administration of the Wesselman Trust. The Wesselman Trust has only \$16,000 remaining. So, Amy is foreseen Paul to use his own money to defend the petition and pay different law firm to handle the administration of the Wesselman Trust.” (Motion to Release Funds at 4:11-17.) The third paragraph of the memorandum of Points and Authorities in support of the Motion to Release Funds argues that the court should order the settlement funds released because the trust “expressly states Paul can [use] trust funds to pay attorney fees to defend the petition” and “both the Probate Code and case law support that Paul can use trust funds to pay for attorney fees to defend the petition.” (Motion to Release Funds at 4:21-23.) Pages 8 and 9 of the memorandum are dedicated to the argument that the funds
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		should be released so that Paul can use them to pay for his defense of this action. (Motion to Release Funds at 8:3-9:27.) Paul argued the funds should be released so that he could use them to pay for his defense. He raised the issue. The opposition responded to this argument and requested that the settlement proceeds either be distributed to the beneficiaries or placed into a blocked account. (ROA 176 at 5:15-9:13.) Paul's reply dedicates more than two of its seven total pages to the issue of Paul's use of the funds for his defense. (ROA 178 at 4:16-6:27.) The issue of Paul's ability to utilize the funds for his defense was raised by the motion and was, therefore, before the court. Further, even if the issue had not been raised by Paul, "the probate court has the <i>'inherent power'</i> to decide all incidental issues necessary to carry out its express powers to supervise the administration of the trust." [Citation.] This inherent equitable power of the probate court has long been recognized to encompass the authority to take remedial action. 'Under California trust law, a court can intervene to prevent or rectify abuses of a trustee's powers. [Citations.]' [Citation.] And, where a probate court has the express authority to remove a trustee sua sponte, it necessarily has the inherent equitable power to employ the less extreme remedy of suspending most of the trustee's powers and appointing an interim trustee pending a hearing. [Citation.] (<i>Schwartz v. Labow</i> (2008) 164 Cal.App.4th 417, 427-428.) The motion is DENIED. Petitioner is directed to give notice.
4	Anderson/Callahan – Trust; 30-2024-01389721	
5	Bent – Trust; 30-2024-01418521	Motion for Judgment on the Pleadings Petitioner Bernadette Bell's Motion for Judgment on the Pleadings as to Respondent James Charles Bent's Opposition to Petitioner Bernadette Bell's Petition to Confirm Beneficiary Status and for Distribution Pursuant to Code of Civil Procedure section 438 (ROA 129) is DENIED. This proceeding was initiated on August 13, 2024, when Charles Lamar Bent filed a petition (ROA 2) seeking removal of James Charles Bent (James) and James T. Sullivan as trustees of The Bent Trust (Trust). The initiating petition is

	directed to an alleged June 11, 2020 restatement and amendment to the Trust. On May 7, 2025, Bernadette Bell (Bell) filed a petition (ROA 60) seeking to confirm her beneficiary status under the Trust. Her petition is based on an alleged January 5, 2023 amendment to the Trust. James filed an opposition (ROA 111) to Bell’s petition on February 25, 2026. Bell then filed the instant motion, seeking judgment in her favor on James’ opposition on the ground James’ opposition is time-barred. For purposes of this motion, the court presumes, without deciding, that a motion for judgment on the pleadings can be brought against an opposition on the grounds asserted by Bell. Motions for judgment on the pleadings are “the functional equivalent of a general demurrer.” (<i>Spencer v. City of Palos Verdes Estates</i> (2023) 88 Cal.App.5th 849, 861.) Accordingly, the “grounds for the motion must appear on the face of the [pleading], and in any matter subject to judicial notice.” (<i>Id.</i> at p. 862.) Because Bell did not ask the court to take judicial notice of anything, the only thing the court may consider in determining this motion are the allegations, denials, and assertions set forth in James’ opposition. Bell argues the opposition was filed more than 120 days after James was timely served with statutory notice of the relevant trust amendment and, accordingly, is time-barred under Probate Code sections 16061.7 and 16061.8. This argument is outside the parameters of James’ opposition, which makes no reference to the alleged service of the notice. Because the motion is directed to assertions beyond outside of the opposition, it must be denied. Further, even if the alleged notice were referenced in James’ opposition, the reference would have to unequivocally demonstrate the opposition is time-barred. “[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution.” (<i>Bezirdijian v. O’Reilly</i> (2010) 183 Cal.App.4th 316, 322.) Accordingly, a motion for judgment on the pleadings based on a statute of limitations “will not lie where the action may be, but is not necessarily barred. [Citation.] In order for the bar of the statute of limitations to be raised . . . the defect must clearly and affirmatively appear on the face of the [pleading]; it is not enough that the [pleading] shows that the action may be barred.” (<i>Geneva Towers Ltd. Partnership v. City of San Francisco</i> (2003) 29 Cal.4th 769, 781.) The motion is DENIED.
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		The court will give notice.
6	Burciaga – Limited Conservatorship; 30-2020-01174580	Motion to Be Relieved Law Office of Michael R. Weinstein’s motion to be relieved as counsel for Maria Ramirez (ROA 136) is GRANTED. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court’s order as entered. Withdrawal will be effective upon filing of proof of service of the order.
7	Jones – Trust; 30-2026-01559861	
8	Boudakian – Conservatorship; 30-2024-01385950	
9	Ueberroth – Trust; 30-2025-01472222	Stipulation and Order signed 06/09/2026. Motion moot.
10	Baker – Trust; 30-2025-01487809	Demurrer and Motion to Strike The Demurrer by Cynthia K. Baker-Fox to Jennifer Lynn Baker’s Amended Petition (ROA 27) is OVERRULED. Cynthia K. Baker-Fox’s Motion to Strike Portions of the Amended Petition of Jennifer Lynn Baker (ROA 26) is DENIED. I. DEMURRER (ROA 26) Cynthia K. Baker-Fox (Cynthia) demurs to Jennifer Lynn Baker’s Amended (1) Petition for Trust Accountings [PCs 16060-s[sic]16062]; (2) Petition for Invalidation & Reversal of Trust Amendments an & Return of Assets [PCs 1600.5, PCs 6112 & PCs 850]; (3) Petition for Breach of Fiduciary Duty [PCs 16002-s 16015]; (4) Petition for Compensatory & Double Damages [PCs 859]; (5) Petition for Surcharge & Other Relief [PCs 17000 et seq.]; (6) Petition for Punitive Damages [Civil Code 3294] on the ground that each cause of action fails to state sufficient facts and is uncertain. Cynthia also demurs to each cause of action on the ground that the court lacks jurisdiction over any of the claims

	because venue is proper in San Bernadino County. Each of those grounds is addressed below. <u>Failure to state sufficient facts.</u> "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. <i>William S. Hart Union High School Dist.</i> (2012) 53 Cal.4th 861, 872.) As explained by the California Supreme Court: "The complaint in a civil action serves a variety of purposes [citation], of which two are relevant here: it serves to frame and limit the issues [citation] and to apprise the defendant of the basis upon which the plaintiff is seeking recovery [citations]. In fulfilling this function, the complaint should set forth the ultimate facts constituting the cause of action, not the evidence by which plaintiff proposes to prove those facts." (<i>Committee On Children's Television, Inc. v. General Foods Corp.</i> (1983) 35 Cal.3d 197, 211–212.) "A complaint will be upheld ""so long as the pleading gives notice of the issues sufficient to enable preparation of a defense."" (<i>Thomas v. Regents of the University of California</i> (2023) 97 Cal.App.5th 587, 611.) Each of the causes of action included in Jennifer's Amended Petition is sufficient to enable preparation of a defense. The demurrers to all causes of action on the ground they failed to state sufficient facts are OVERRULED. <u>Uncertainty.</u> ""[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond."" (<i>Morris v. JPMorgan Chase Bank, N.A.</i> (2022) 78 Cal.App.5th 279, 292. This is, in part, "because ambiguities can reasonably be clarified under modern rules of discovery." (<i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135.) As set forth above, each of the causes of action included in the Amended Petition is sufficient to allow a response. Accordingly, the demurrers to all causes of action on the ground that they are uncertain are OVERRULED. <u>Improper venue.</u> Finally, Cynthia demurs to each cause of action on the ground the court lacks jurisdiction because proper venue is in San Bernadino County. This argument conflates jurisdiction and venue which, for the most part, are separate and distinct concepts. However, those distinctions do not need to be addressed here because Cynthia is statutorily barred from making the venue argument pursuant to Code of Civil Procedures section 396b(a), which reads: "Except as otherwise provided in Section 396a, if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial
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	thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurrers, or moves to strike . . . files with the clerk, a notice of a motion for an order transferring the action or proceeding to the proper court, together with proof of service upon the adverse party, a copy of those papers." The exceptions provided in section 396a do not apply here. This court has subject matter jurisdiction because the trust was executed in Orange County, California and the trust property includes real property located in Orange County California. (Amended Petition, Exhibit.) No motion for an order transferring the action has been filed with this court and no proof of service of such motion has been filed with this court. The demurrer is OVERRULED. II. MOTION TO STRIKE (ROA 55) Cynthia seeks to strike the passages of the Amended Petition that refer to punitive and double damages. Code of Civil Procedure section 436, which governs motions to strike, reads: The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. [¶] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Emphasis added.) By its language, the statute is permissive ("may"). Use of motions to strike "should be cautious and sparing." (<i>PH III Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682-1683.) If true, the allegations of the Amended Petition could be sufficient to support an award of double and/or punitive damages. The motion to strike is DENIED. The court will give notice.
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